
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Useldange

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Deliberation no. 8FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection, in particular Article 41;

Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular Article 10 point 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular Article 9;

Considering the following:

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I. Facts and Procedure

During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary session decided to open an investigation with the Municipal Administration of Useldange, located at 2, rue de l'Église, L-8706 Useldange (hereinafter referred to as the "controlled entity"), based on Article 38 of the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection (hereinafter referred to as the "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the head of the investigation. The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter referred to as the "CNPD" or the "National Commission") aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter referred to as the "GDPR") and the law of August 1, 2018 and legal texts providing specific provisions regarding the protection of personal data and more specifically the application and compliance with Articles 37.1.a) and 37.7 of the GDPR.¹ The investigation specifically aimed to verify compliance with the obligation to appoint a Data Protection Officer (hereinafter referred to as "DPO") and to communicate the contact details to the supervisory authority. It followed a general verification that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

The controlled entity was informed of the opening of the investigation against it by a letter from the head of the investigation dated February 3, 2023. In this letter, the head of the investigation requested the controlled entity "to kindly take note of the initial findings below:

By letter dated August 11, 2022, the President of the CNPD reminded the Mayor of his obligation to

appoint a Data Protection Officer (hereinafter referred to as the "DPO"), as well as his obligation to notify the CNPD of this appointment (DOCUMENT 1).

1 Deliberation No. [...] of December 9, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Municipal Administration of Useldange.

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In the absence of a response from the Mayor, the President of the CNPD sent him a reminder dated September 23, 2022 (DOCUMENT 2).

As of the date of drafting this letter, and after consulting the register of data protection delegates, the investigating officers did not identify any designation of a DPO for your municipality.

The controlled party responded to the opening letter of the investigation by letter dated February 24, 2023.

At the conclusion of its investigation, the head of the inquiry notified the controlled party on April 11, 2023, of a communication of grievances detailing the breach he deemed constituted in this case regarding the requirements prescribed by Article 37.1.a) of the GDPR (obligation to designate a DPO).

The head of the inquiry proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt a corrective measure.

The opportunity to submit written observations on the communication of grievances was offered to the controlled party.

The controlled party communicated its observations regarding the communication of grievances to the head of the inquiry by letter dated April 21, 2023.

The President of the Restricted Formation informed the controlled party by letter dated May 23, 2023, that their case would be listed for the session of the Restricted Formation on July 4, 2023, and that they were offered the opportunity to be heard.

The controlled party informed the Restricted Formation by email dated June 28, 2023, that it would not attend the said session.

During this session, the head of the inquiry presented his oral observations in support of his written observations and answered questions posed by the Restricted Formation.

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II. In law

II.1. On the grounds for the decision

On the breach related to the obligation to designate a DPO and to communicate the contact details of the DPO to the CNPD

1. On the principles

In accordance with Article 37.1.a) of the GDPR, any data controller or processor must designate a DPO if the "processing is carried out by a public authority or body, except for courts acting in their judicial capacity."

Based on Article 37.7 of the GDPR, any data controller or processor is also obliged to communicate the contact details of the DPO to the supervisory authority, which in this case is the CNPD.

In its guidelines regarding DPOs, the Article 29 Working Party specified the relevant provisions of the GDPR in this area to assist data controllers and processors in complying with the legislation, as well as to assist DPOs in their role.

It should be noted that the European Data Protection Board, which succeeded the Article 29 Working Party on May 25, 2018, has adopted and reapproved the documents adopted by said Working Party

between May 25, 2016, and May 25, 2018, including the aforementioned guidelines.

2. In this case

The head of the inquiry noted in his communication of grievances that "at the date of the opening of the investigation, and after consulting the register of data protection delegates,

2 The guidelines regarding DPOs were adopted by the "Article 29" working group on December 13, 2016. The revised version (WP 243 rev. 01) was adopted on April 5, 2017.

3 See decision Endorsement 1/2018 of the EDPB of May 25, 2018, available at:

https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

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data, the investigating officers did not identify the designation of a DPO for the Municipal Administration of Useldange."

He noted "the explanations of the Controller in his response letter dated February 24, 2023 (DOCUMENT 4) stating that [the controller] failed to [...] transmit the letters from the CNPD in a timely manner" and that the controller had "the intention [...] to engage an external company to handle this matter."

Furthermore, he observed that "the agents of the CNPD received by mail on March 31, 2023, the declaration form of the data protection officer, completed and signed by the Controller on March 17, 2023 (DOCUMENT 5)."

Thus, he concluded that "the conditions of Article 37, paragraph (1) point a) of the GDPR were not respected."⁴

The Restricted Formation wishes to emphasize first that the controller is a Luxembourg municipal administration and, as such, a public body required to have designated a DPO no later than May 25, 2018, the date of application of the GDPR.

It then notes that the controller only responded on February 24, 2023, to the letter from the head of the investigation dated February 3, 2023, informing him of the opening of the investigation. Moreover, none of the arguments put forward by the controller and recalled by the head of the investigation in the communication of grievances were of a nature to counter the breach identified by the head of the investigation.

The Restricted Formation also notes that the CNPD had, as of March 31, 2023, received by mail the declaration form of the DPO from the controller, signed and dated March 17, 2023, by which he designated the company "[...]" as DPO.

Finally, in response to the communication of grievances, the controller, in a letter dated April 21, 2023, stated that as announced in his letter of February 24, 2023, he had "reacted without delay" by designating the company "[...]" as DPO.

4 Communication of grievances, points 16 to 20.

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The Restricted Formation can therefore only align itself with the finding of the head of the investigation that as of the date of the opening of the investigation, namely December 9, 2022, the controller had not yet designated a DPO, despite the reminder letters from the CNPD dated August 11, 2022, and September 23, 2022.

In light of the above, it concludes that at the beginning of the investigation, the controller failed to meet its obligation under Article 37.1.a) of the GDPR.

Furthermore, the Restricted Formation notes that as of the date of the opening of the

investigation, the controller had not communicated the contact details of its DPO to the CNPD in accordance with Article 37.7 of the GDPR. Therefore, since the monitoring of compliance with said article was within the scope of the investigation in question (see point 2 of this decision), it considers that the controller also failed to meet its obligation under Article 37.7 of the GDPR.

II. 2. On corrective measures

1. On the principles

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) warn a controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) reprimand a controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) order the controller or processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) order the controller or processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined period;

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- e) order the data controller to inform the data subject of a personal data breach;
- f) impose a temporary or permanent limitation, including a prohibition, on processing;
- g) order the rectification or erasure of personal data or the restriction of processing pursuant to Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;
- h) withdraw a certification or order the certification body to withdraw a certification issued under Articles 42 and 43, or order the certification body not to issue a certification if the applicable certification requirements are not or are no longer met;
- i) impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

The Restricted Formation wishes to clarify that the facts taken into account in this decision are those observed at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they allow for full or partial compliance to be established, do not retroactively annul an identified breach.

Nevertheless, the steps taken by the controlled party to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be imposed.

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2. In this case

In the communication of grievances, the head of the investigation "proposes to the Restricted Formation to issue a reprimand against the Controlled Party stating that it must comply with the applicable legislation regarding the appointment of a data protection officer."

Regarding the corrective measure proposed by the head of the investigation and by reference to point 23 of this decision, the Restricted Formation takes into account the steps taken by the controlled party to comply with the provisions of Articles 37.1.a) and 37.7 of the GDPR, as detailed in its letters dated February 24 and April 21, 2023.

In particular, it notes that on March 31, 2023, the CNPD received by mail the declaration form of the DPO of the controlled party, signed and dated March 17, 2023, according to which a DPO had been appointed on the same day.

Nevertheless, at the time of the opening of the investigation, the controlled party had neither appointed a DPO nor communicated their contact details to the CNPD.

For these reasons, the Restricted Formation considers it appropriate to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 24 of this decision and to reprimand the controlled party for violating Articles 37.1.a) and 37.7 of the GDPR.

Finally, pursuant to Article 52 of the law of August 1, 2018, the "CNPD may order, at the expense of the sanctioned person, the full or partial publication of its decisions, except for decisions relating to the imposition of penalties, and subject to:

- 1° the remedies against the decision being exhausted; and
- 2° the publication not posing a disproportionate risk of harm to the parties involved."

5 Communication of grievances, point 26.

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The Restricted Formation considers that the publication of this decision is not likely to cause disproportionate harm to the controlled entity, but is justified in light of the public interest in knowing the results of the general audit that the CNPD conducted with all Luxembourg municipalities during the summer of 2022.

In view of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to uphold the violations of Articles 37.1.a) and 37.7 of the GDPR;
- to issue a reprimand against the Municipal Administration of Useldange for violating Articles 37.1.a) and 37.7 of the GDPR;
- to publish the decision on the National Commission's website as soon as the avenues for appeal have been exhausted.

Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen
Thierry Lallemand
Marc Lemmer
President

Commissioner

Commissioner

Indication of avenues for appeal

This administrative decision may be subject to an appeal for reform within three months following its

notification. This appeal must be brought before the administrative court and must necessarily be filed through a lawyer from one of the Bar Associations.